



DEPARTMENT OF THE NAVY  
HEADQUARTERS  
NAVAL CRIMINAL INVESTIGATIVE SERVICE  
27130 TELEGRAPH ROAD  
QUANTICO VA 22134-2253

**JUSTIFICATION AND APPROVAL  
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

- Contracting Activity.** Naval Criminal Investigative Service-Headquarters (NCIS-HQ), Administration and Logistics Directorate, Acquisition Division
- Description of the Action Being Approved.**

- ☐ Award of a contract on a sole source basis for supplies/services.  
☒ Award of a contract on a brand name basis for supplies/services.

**Description of Supplies/Services:** NCIS requires the Appian Starter Kit License Subscription to continue the mission critical modernization of NCIS's Consolidated Law Enforcement Operations Center (CLEOC 2.0) using the Air Force Office of Special Investigations' (AFOSI) ORION solution which is built on the Appian technology and requires an Appian license to operate. The Government will procure the Appian Starter Kit License Subscription competitively under the Department of Defense Enterprise Software Initiative (DoD ESI) Blanket Purchase Agreement (BPA) for Appian. This will be a Firm Fixed Price Task Order (TO).

**Total Estimated Value of the Requirement:**

| FISCAL YEAR | APPROPRIATION | AMOUNT |
|-------------|---------------|--------|
| 2026        | OM&N          |        |

**Period of Performance:** Total of 12 months described as below. (MVP deliverable in 8 weeks from date of award; Maintenance and Support shall be 10 months from date of delivery of final MVP.)

- Statutory Authority Permitting Other Than Full and Open Competition.**

- ☒ 10 U.S.C. 3204(a)(1), Only One responsible source and no other supplies or services will satisfy agency requirements.  
☐ 10 U.S.C. 3204(a)(2), Unusual and compelling urgency.  
☐ 10 U.S.C. 3204(a)(3), Industrial mobilization; engineering, developmental, or research capability; or expert services.  
☐ 10 U.S.C. 3204(a)(4), International agreement.  
☐ 10 U.S.C. 3204(a)(5), Authorized or required by statute.  
☐ 10 U.S.C. 3204(a)(6), National Security.  
☐ 10 U.S.C. 3204(a)(7), Public Interest.

- Rationale Justifying Use of Cited Authority.** The acquisition is being conducted under the procedures of FAR 8.405-6(b) – Limiting sources; Items peculiar to one manufacturer. The justification rationale for restricting competition is that the required software is manufactured by, and proprietary to, **Appian Corp.** This software is the only product that can meet the Government's current investigative and case management requirement to use existing source code.

**5. Specific characteristics of the supplies or services that limit the availability to this/these source(s), i.e., unique features, form-fit-function, etc.). State why the requested material or service represents the minimum requirement(s) of the Government. Describe in detail why only this/these suggested source(s) can furnish the requirement(s) to the exclusion of other sources.**

NCIS conducted research and identified an existing Government solution that can be used to modernize CLEOC. The Air Force Office of Special Investigations' (AFOSI) developed the ORION tool, which is a government-off-the-shelf (GOTS) solution for DoD Investigative Case Management. As a parallel to CLEOC 2.0, ORION was determined by NCIS to satisfy the majority of all NCIS Requirements out-of-the box. As suggested by the Clinger-Cohen Act of 1996 (40 U.S.C. 1401 et seq.), the Government should re-use existing, government-owned intellectual property (IP) when it will satisfy the mission and avoid significant duplication of cost. Through market research and consultation with AFOSI, NCIS determined that alternate approaches would take significant cost and delay to deploy another, equivalent solution.

This procurement must be done on a brand name basis due to the ORION application relying on a specific low-code application platform from Appian Corporation as the essential enabling capability and no other provider's application platform is compatible for use. Moreover, without the Appian licenses the application cannot be accessed, utilized, or otherwise assessed, rendering it unusable.

Appian is a market leader for low code development, Business Process Management (BPM) and process automation software. Appian's low code platform allows users to develop and manage applications without needing to build the typical development infrastructure. The platform offers tools to facilitate deployment through cloud, on-premises, and self-managed environments, while using Application Programming Interface (API) integrations to external systems through web services (e.g., Salesforce, UiPath). It includes Artificial Intelligence (AI)/generative AI functions and a multi-source 'data fabric' that links supported enterprise data systems to build applications. Appian's BPM include visual tools for creating screens such as process diagrams, data models, and forms with reporting capabilities for each of the process instances which are mainly focused on administrative and business applications. This ability to use process models to automate business workflows allows users to simplify and optimize processes.

Appian's Low-Code Enterprise Platform (LCAP) allows application development by abstracting common reusable software components and allocating developer effort to tasks closer to business outcomes. Appian's LCAP provides a platform that allows multiple developers (professional developers, end-users and business analysts) to collaborate and build a solution that supports individual and role-based permissions via a single-sign-on. The Appian LCAP supports the backend for frontend architecture style for building GUI front ends for automation of task and process mining and decision automation.

At this time, Appian has a range of security and privacy certifications, including SOC 2, SOC 3, PCI-DSS, HIPAA, GDPR, ISO 27001 and FedRAMP IL V. No other LCAP has FedRAMP IL V certification. Appian sells to enterprises in a variety of industries, including financial services, insurance, government, and life sciences companies worldwide. The platform is commercially available on a subscription-based model. Appian has been used by multiple DoD entities to develop contracting and acquisition solutions to increase automation in government acquisitions in a low code environment. Government focused pre-built solutions are also available.

Appian is the sole owner of its Intellectual Property (IP) inclusive of its software source code. Appian is the only company that can provide maintenance and support on its perpetual software licenses, subscriptions, and software-dependent hardware. Software maintenance is necessary to provide the patches, updates, and hotfixes to sustain Appian products running on DoD networks. Maintaining Appian products is required to decrease unacceptable operational and security vulnerability risks to the IT assets of the DoD. Based upon our experience and knowledge of the marketplace, other companies cannot provide the required patches, updates, and hotfixes to sustain Appian products running on DoD networks as they lack the intellectual property rights.

The Government requires Appian licenses for Government personnel and Contractor to access the application in support of the development, testing, and migration effort, which includes performance verification and validation of the application. There are no alternative products available that are compatible with the Appian software or allow the use of the ORION application, which was built on the Appian Platform. These licenses, in combination with the tested application and the availability of our production environment, will allow the Government to achieve an Authority to Operate via the U.S. DoD acquisition process for Risk Management Framework and Information Assurance (IA) Certification and Accreditation process.

**6. Determination of fair and reasonable pricing.**

Basis of award will be Lowest Priced, Technically Acceptable in anticipation of competitive quotes in support of the fair and reasonable determination.

**7. Brief description of Market Research conducted and results or why market research was not conducted.**

Market Research was conducted using different research avenues throughout the last several months. One of the actions taken by the Market Research team was through a Request for Information (RFI) issued to industry on SAM.gov. The purpose of the RFI was to refine the government's requirement and to identify potential solutions and sources capable of meeting the needs of the agency. In response to the RFI, a total of 51 submissions were received. Following a comprehensive review and analysis of all the responses, it was determined that a specific brand-name product, which is government-tested and proven, is the most viable solution that can fully satisfy the agency's unique needs and technical requirements in a cost-effective and timely manner. Only one response has a solution identified as GOTS, other responses had various COTS solutions that would need further development, and other responses has solutions that would need to be extensive developed, which would result in duplication of costs for the government, and unknown variables resulting in program risks and delays in schedule.

Through additional market research, the Contract Specialist conducted Market Research and found the Appian solution is under GSA Advantage, SBIR III, and DoD ESI via a BPA with three resellers. Based on additional research using internet queries, the required solution is not found available from any other mandatory or preferred sources, i.e., AbilityOne, UNICOR or NASA SEWP.

**8. Any other factors supporting use of other than full and open ex., National Security, etc.: N/A**

**9. Listing of sources (Name, Address, POC):**

| Manufacturer                                                    | Business Information                                     | Point of Contact |
|-----------------------------------------------------------------|----------------------------------------------------------|------------------|
| Appian Corporation<br>7950 Jones Branch Dr.<br>McLean, VA 22102 | UEI: QHL3D738D7L4<br>CAGE: 1XKB7<br>Business Size: Large |                  |

Manufacturer's Authorized Resellers: There are three BPA holders under the DoD ESI Appian Agreement.

10. **A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.**

A market review for similar products or services will be conducted on any future procurements to ensure there are opportunities to maximize competition or to reassess the mission needs with the best solution for the Government.

#### APPROVALS/CERTIFICATIONS

11. **TECHNICAL COGNIZANCE.** I certify that the facts and representations under my cognizance which are included in this justification, and form a basis for this justification, are complete and accurate.

Name: [REDACTED]

Title: [REDACTED]

Code: [REDACTED]

Signature: [REDACTED]

Date: [REDACTED]

12. **CONTRACTING OFFICER CERTIFICATION/APPROVAL.** I certify that this justification is accurate and complete to the best of my knowledge and belief.

Name: Kristin L. Gomez

Signature: 

Digitally signed by  
GOMEZ.KRISTIN.L.1177929049  
Date: 2026.02.13 13:30:20 -05'00'

Date: \_\_\_\_\_